

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CLCL042087: DISCOVER BANK vs RYAN A GUERRERO-ESCOBAR

07/02/2026 in Department 41

Motion for Judgment on the Pleadings

BEFORE THE HONORABLE JANET M. FRANGIE
Assigned Judge

Below are the Court's tentative decisions with respect to the matters on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

If you wish to submit on the Court's tentative decision without appearing, please send an email to the following address by 8:00 a.m. on the date of the hearing with counsel for all parties copied on your email:

courtroom41@ventura.courts.ca.gov Please state on the subject line of your email: "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative decision is subject to change.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

If you are an attorney or Pro Per and your case is on calendar, you can appear remotely by Zoom for Case Management Conferences and Law & Motion matters. You cannot appear remotely for trials or any matter where testimony or evidence is going to be admitted. This court no longer allows remote appearances by CourtCall. Zoom is the exclusive means by which counsel can appear remotely. Represented parties, interested persons, witnesses, and the public at large, cannot attend remotely. You cannot forward the Court's Zoom link to others so that they can attend remotely. Courtroom 41 is open to the public and such individuals can attend by physically appearing in the courtroom. **While appearing remotely by Zoom, it is unlawful to video or audio record the proceedings or take screen shots/still photos of the proceedings.**

To appear remotely by Zoom, you must register by 3 p.m. the court day before your hearing by filling out the registration form found on the Courtroom 41 section of this webpage: <https://ventura.courts.ca.gov/remote-appearances> . When appearing by Zoom, you will need to mute yourself and turn your camera off until your case is called. The court calendar begins at 9 a.m.

Assuming you have given advance email notice the court day before your hearing of your intent to appear by Zoom, you may enter the Courtroom 41 Zoom waiting room at 8:15 a.m. on the day of your hearing through this link:

<https://ventura-courts-ca.zoom.us/j/81985625079?pwd=cHV2MENmWGNLSnJCMlM5Sk1xRk0vdz09>

For information about Judge DeNoce including his case management and trial rules, please visit: www.DeNoce.com

Motion:

Plaintiff's Motion for Judgment on the Pleadings is denied without prejudice for two reasons: 1. There is no proof of service of the motion on the Defendant on file with the Court; and 2. The meet and confer by Plaintiff is insufficient. California Code of Civil Procedure Section 439 (a) provides as follows:

(a) Before filing a motion for judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in **person, by telephone, or by video conference** with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings. (emphasis added)

Plaintiff's meet and confer letter **mailed** to defendant does not satisfy the Code's requirements. (See Exhibit A to Declaration of Katie Zwarg filed May 20, 2025.)

The CMC hearing date of July 24, 2026 remains on calendar. Plaintiff is directed to give notice of ruling.